



HUMAN RESOURCE POLICIES AND PROCEDURES MANUAL

APPROVED BY:

Hospital Administrator – South B
Hospital LTD.

DEFINITIONS

The following terms carry the meaning defined hereunder:

TERM	MEANING
SBH	South B Hospital its affiliates and assigns.
Allowances	Cash benefits paid by SOUTH B HOSPITAL to its employees for specific purposes other than salary.
Authorized Dependents	A spouse and up to three children of an employee, may include natural or adopted children up to 23 years of age (must be supported by relevant documentary proof).
Benefit	Advantage to which staff are entitled to under their respective terms and conditions of employment.
Locum/Contractual Staff	An employee who is engaged on a short-term basis not exceeding 3 months and is on a daily rate of payment.
Company	South B Hospital
Employee	A person currently appointed to work exclusively for SOUTH B HOSPITAL and whose employment is governed by these terms and conditions.
HoDs	Heads of Departments
Immediate relative or Family	Employees' spouse, children, father, mother, brother, sister, father-in-law and mother-in-law.
Letter of appointment	the written agreement of employment between SOUTH B HOSPITAL and the employee detailing the terms and conditions of employment.
HA	Hospital Administrator
Permanent Staff	An employee who has a letter of appointment on a continuous basis.
Probation	A trial period to test a person's conduct, ability, qualities before he/she is finally confirmed for a position.
Redundancy	Laying off staff superfluous to current staffing requirement.
Remuneration package	Basic salary plus all other cash and non-cash benefits, allowances, and perquisites to which an employee is entitled to.
Shareholders	Individuals/companies/institutions who own shares in the Company.
Spouse	One named and recognized as wife or husband of the employee.
Summary dismissal	Termination of employment on a disciplinary decision by the employer, as per Employment Act.

Suspension	Where an employee is temporarily stopped from performing their duties on disciplinary grounds for a specific period of time awaiting investigations.
The Board of Directors	Individuals appointed/nominated by the shareholders, with the responsibility of making decisions pertaining to the Company's strategic direction.
TPA	Third Party Agreement

SECTION 1: THE COMPANY

1.1 About the Company

INTRODUCTION

South 'B' Hospital is registered under Companies Registration Acts as South 'B' Hospital. It is incorporated in Kenya with Limited Liabilities and fully Kenyan owned.

SECTION 2: INTRODUCTION

2.1 Purpose

It is the policy of South B Hospital (SBH) to establish terms and conditions of employment that are recognized clearly as being fair to the interests of those concerned and that encourage staff to take a sincere interest and pride in SBH and its programme of work. This policy manual is developed based on best Human Resource Management market practices and provisions of local employment legislation. SBH will keep this manual current and relevant. Therefore, from time to time it will be necessary to modify and amend some sections of the policies and procedures, or to add new procedures.

These policies and procedures apply to all employees.

2.2 Revision and Distribution

A copy of this manual and all revisions will be provided to management and employees electronically. Management will ensure that this manual is accessible to all employees.

2.3 SBH'S Human Resources Philosophy

SBH is committed to quality working experience for all staff by:

- Providing a flexible, productive working environment.
- Encouraging relationships based on trust, courtesy and mutual respect.
- Valuing each employee for the knowledge and skills he or she contributes to the organization.
- Fostering a level of caring for individuals that is above and beyond the professional level.
- Supporting continuous development of the individual through lifelong learning.
- Promoting employee involvement in meeting the challenges of a growing and changing staff community.
- Working together to make SBH successful.

Consistent with the mission and goals of SBH, the Human Resource Department actively promotes a working and learning environment that supports a highly qualified workforce and quality of work life that is based on trust and respect for all employees.

2.4 The Role of Management

To develop a conducive and enabling work environment that will encourage employees to perform at their best in pursuit of the Company's strategic objectives, without discrimination on the basis of race, colour, sex, religion, political opinion, national extraction or social origin, the HIV status or disability among others.

2.5 The Role of Employees

To observe the always laid down rules and procedures as revised from time to time and to conduct themselves in an acceptable manner that will promote and reflect a positive image of SBH.

SECTION 3 - EMPLOYMENT

3.1 Recruitment & Manpower Planning

3.1.1 Policy Statement

The recruitment and selection decision are of prime importance as the vehicle for obtaining the best possible person-to-job fit which will contribute significantly towards SBH's effectiveness. To ensure that these policy aims are achieved, all appointing managers will receive training in effective recruitment and selection.

3.1.2 Purpose

It is increasingly important, as SBH evolves and changes, that new employees show a willingness to learn, be adaptable and possess the ability to work as part of a team. This policy ensures that the Recruitment and Selection procedures will:

- ✓ Be fair and consistent.
- ✓ Be non-discriminatory
- ✓ Conform to all statutory regulations and agreed best practice.

3.1.3 Objective

The Recruitment & Selection policy and procedure will guide managers to ensure that all manpower needs, and skills criteria are addressed.

3.2 Staff Establishment

- The HR Department will maintain an approved and budgeted annual establishment defining in detail the number of staff at each level as well as their respective grade in all departments/sections/units. Appointments, promotions and transfers may only take place within the approved establishment.
- Replacement within the approved establishment will not be automatic and might present an opportunity for reviewing the structure of that particular department. HoDs will be required to justify the need for replacement of staff after which the approval will be made.
- Additional new positions into the establishment will only be affected upon submission of justification by HoDs to the using the '**Staff Recruitment Justification Form**'.
- All senior and new unbudgeted positions must be approved by the Administrator.
- The responsibility for initiating recruitment process lies with the respective departmental heads
- The establishment may be reviewed annually as part of the budgetary process with the Administrator and where necessary subject to Board approval, it will be incorporated into the approved budget for the following year.
- Where suitably qualified and experienced existing staff members of SBH are available, consideration will be given first to those staff before external candidates are sourced.

3.2.1 Recruitment Approvals & Procedure

1. Before hiring for a new or replacement position is made, the departmental heads will submit their request using the **Staff Recruitment Requisition** Form to the HRO for approval. In the request, the job must be defined indicating whether position exists or is a newly established post. A job description must be drawn up in consultation with the Human Resources Department

2. After the HRO's approval, the form is forwarded to the Administrator for final approval.

3. SBH preferred medium of job advertisement is online based i.e. through its website and other electronic channels. However, certain exceptions may be made when recruiting for senior positions or certain specialized skills through use of recruitment agencies, head hunting or in the main newspapers.
4. It is the responsibility of the HR department to advertise the vacant positions internally and/or externally. Short-listing of candidates will be jointly done by HR and the initiating HoD.
5. A profile of short-listed candidates will be prepared by the HR Department and they will be invited for interview.
6. It is important that at least three suitable candidates be invited for an interview to fill any vacant position.

3.2.2 Interview Panel

The HR Department will then arrange the interview with the appropriate Selection Committee.

3.2.3 Interview Process

A recommendation signed by the members of the panel together with the completed interview sheets shall be compiled by the Human Resources Department. The interviewing panel will review and make the final recommendation.

In all cases however, the Administrator will approve the recommendation before any offer is made to the selected candidate.

3.2.4 Psychometric Tests and Assessment Centers

Where necessary these will be administered for certain positions and only those that score a satisfactory job fit will be considered for the next interview stage.

3.2.5 Reference Checks

The HRO will conduct thorough reference checks on candidates before appointments. Only those with satisfactory references will be considered.

3.2.6 Appointment Offer

The Human Resources Department will make an offer of appointment to the successful candidate following reference checks. In case the top candidate declines the offer, the next qualified candidate may be offered the position as long as their performance in the interview was above average.

3.2.8 Letter of Offer

Successful candidates shall not be permitted to commence work unless and until the letter of offer has been issued and its receipt and acceptance acknowledged by signing and returning a copy of the letter of offer which shall be placed on the staff personal file.

3.2.9 Personnel Information

All newly engaged staff must complete all necessary personnel documents outlined in the starter pack to ensure that all personnel records are on personal staff file as provided in the new employee records checklist. These documents should be submitted to the Human Resources Department.

3.2.10 Effective Date

The appointment of all staff shall take effect from the date on which staff members commence their duties as indicated in their letter of appointment.

3.3 Types of Appointments

3.3.1 Permanent Appointment

Permanent appointment refers to the engagement of a suitable person who has satisfactorily completed the required probationary period and has been confirmed.

A permanent employee shall receive a salary and shall be entitled to annual leave.

This type of appointment shall be subject to a termination clause as stipulated in the contract of employment.

3.3.2. Fixed Term/Locum/Contractual Appointment

This type of appointment covers employees whose contract ends on a specified date, or when a specific task is completed, or when a specific event occurs.

A fixed-term contract ends on an agreed date. The period of such a contract may range from a matter of months up to a period of a year or more.

3.4 Re-Employment of former SBH Employees

The company may consider re-engagement of former staff provided that the reason for resignation was not due to disciplinary action or poor performance.

3.5 Appointment of Relatives

1) SBH is an equal opportunity employer and is committed to providing employment opportunity and development, regardless of gender, ethnic origin, race, age or religion. However, it is recognized that close relatives working in the same organization can give rise to special problems. The Administrator may approve the appointment of relatives of a staff member provided that the selection is made on a competitive basis and following the laid-down procedure that they meet the job specifications. Further, they will not be supervised by or report to a relative, and neither will a relative report to nor be supervised by them.

2) All staff joining SBH and have existing relatives within the company's employment, will be required to declare immediately using the Declaration of Conflict-of-Interest Form and the Staff Update Form. It is also important for one to inform the interviewing panel of the same.

3.6 Staff Induction

SBH will make sure all new employees feel welcome and are ready to start work safely and competently.

3.6.1 An induction checklist

Is a useful way of ensuring that information is imparted to new employees when they are likely to be most receptive. It avoids overloading employees with information during the first weeks whilst ensuring that all areas are covered. Managers/supervisors should ensure that these matters have been properly understood whilst the checklist is being completed. Arrangements should also be made for the employee to visit any relevant departments with which they have regular contact in the course of their duties. At the end of the process the induction checklist should be signed by the relevant parties and placed in the member of staffs' personnel file.

A typical induction checklist should include:

- ✓ Introductions.
- ✓ Welcome tea
- ✓ Workplace tour

- ✓ Nominated buddy
- ✓ A working safety plan as per the occupational health & safety requirements
- ✓ Training plan
- ✓ Relevant IT system orientation
- ✓ Policy and procedural requirements

Levels of Induction

3.6.2 Departmental Induction Program

It is a requirement that every new employee must undergo a departmental induction program within the first three (3) months of joining the organization.

This program will give the employee an exposure to his/her department's role, structure, and the team members, his/her role expectation including performance deliverables. This will enable the staff to settle quickly into their job.

Only those employees who undergo the departmental induction program and have signed off their attendance will be confirmed into permanent employment.

3.6.3 Corporate Induction Program (CIP)

All employees will undergo corporate induction program within the first six months upon joining the company. The main objectives of the program are to:

- Familiarize new employees with the company history, core values and policies.
- Give them a sense of belonging
- Help them understand the company operations, product knowledge and departmental linkages.

3.7 Staff Multiple Reporting Lines Policy

3.7.1 Policy Statement

To ensure that both technical and administrative supervision of staff with dual or multiple reporting lines is conducted in a professional manner.

In order to effectively manage the SBHs shared human resources, the company will assign such resources with dual or more reporting lines where applicable.

3.7.2 Underlying Principles

- 1) Dual or more reporting lines assigned to a particular position will mainly focus on the business (administrative) and technical functions.
- 2) All assigned reporting lines must mutually address the issues of time allocation to different tasks, priority setting and dedication, focus and knowledge sharing.
- 3) Duties assigned to staff with dual or more reporting lines must be clearly defined and discussed through the staff's job descriptions among the respective managers/supervisors and the employee for mutual understanding. Any changes in the duties will be communicated, discussed and mutually agreed upon among the respective reporting lines in good time.
- 4) The Administrator or other managers with the administrative/business reporting role will be the primary reporting line while the technical person will be the secondary reporting line supporting the business line.
- 5) Communication across the reporting lines must be key and it should be done in a timely manner so as not to inconvenience or disrupt working arrangements.

3.7.3 Procedures

- 1) Any new staff joining the organization and assuming a position with dual or multiple reporting lines will be inducted by the respective managers and advised on the various expectations of each reporting head. The employee will be required to refer his/her day-to-day activities or feedback to his primary reporting line.
- 2) The employee must consult regularly in order to provide a balance on the various deliverables expected of him/her by the respective managers he/she reports to.
- 3) In case of any changes in the duties assigned, the employee will be fully informed and advised on his/her new work expectations by both reporting lines.
- 4) The various reporting line managers must consult regularly to ensure that the business is fully supported in a professional manner.
- 5) During performance goal setting and evaluations, all parties concerned will arrange for a mutually agreeable time and venue to effectively conduct the performance evaluation processes accordingly.

3.8 Probation

- Newly recruited staff will be confirmed to permanent employment upon satisfactory completion of the probation period in line with their employment contract. During the probation period, employment may also be terminated by either party giving the other party seven (7) days' notice or the Company paying salary in lieu
- At the end of the probationary period and upon a positive appraisal, by the immediate supervisor, employment will be confirmed by the Administrator. The probationary period may be extended at the Company's discretion, but not more than 6 months.
- During the probation period, staff members are entitled to the full package of benefits and allowances, as per their letter of appointment.
- Probation shall count as part of full employment for purposes of calculation of leave, etc. Termination of service while on probation During probationary period, SBH may terminate services by giving a 7 days' notice in writing, or 7 days salary in lieu of notice. The employee will be required to give SBH similar notice should they wish to leave SBH 's service

3.9 Transfer

The Administrator of the Company or his/her appointed delegate has the right to transfer any member of staff from one section to another or from one position to another if such a need arises.

3.10 Promotion.

Promotion occurs when an employee is transferred from one job to another higher cadre job whereby the new job involves greater responsibility, status, and enhanced remuneration.

It demonstrates management's intention to fill a vacancy using talent within SBH, rather than embarking on an external recruitment.

When an employee is promoted in recognition of performance, the employee's pay will be increased to at least the minimum entry pay point of the new/promoted grade.

3.11 Employment Termination

If it is established that an employee is incapable of performing within acceptable standards or has violated the code of conduct justify termination rather than dismissal, SBH may terminate the employee's contract of employment by giving the required notice period of termination of contract of employment as per the employee's terms and conditions of employment.

If an employee is incapable of performing to the required standards, supervisor shall initiate action in accordance with discipline policy.

SBH may terminate the services of any employee at any time in the event of an organizational restructuring process, reduction/ unavailability of funds, continued ill health, or a decline in demand for the service provided by that employee.

Employees have the right to appeal to the Administrator. The appeal must be made within three (3) working days from the date of termination. If the employee does not appeal against the sanctions imposed by SBH-within the established time limits, the matter shall be deemed settled.

3.12 Summary Dismissal

(This section should be read in conjunction with the Discipline Policy)

If an employee violates the disciplinary code, which is considered sufficiently serious to justify summary dismissal, the supervisor shall recommend to the HRO that the employee should be dismissed summarily from employment.

Any of the following matters may amount to gross misconduct to justify the summary dismissal of an employee for lawful cause:

- 1) If without leave or other lawful cause, an employee is absent from the proper workplace or any other place considered as the normal place of work.
- 2) If during normal working hours, by becoming intoxicated with drugs or alcohol, an employee is incapable of proper job performance.
- 3) If an employee willfully neglect to perform any work that has been equitably and fairly allocated and which is within the employee's job description and contract of employment.
- 4) If an employee's work performance is deemed unsatisfactory, careless and improper, without due regard to deadlines and quality.
- 5) If an employee uses abusive or insulting language or behaves in a manner insulting to fellow employees and those placed in authority to supervise and evaluate the employee's performance.
- 6) If an employee knowingly fails or refuses to obey a lawful and proper request to perform a task or an assignment, which is within the scope of the employee's assigned role or job description.
- 7) If an employee uses physical violence either against another employee, Manager, Supervisor or customer.
- 8) If an employee is arrested for an offence punishable by imprisonment and is not within 20 working days released on bail or on bond or otherwise lawfully set at liberty.
- 9) If an employee commits or is suspected of having committed a criminal offence to the substantial detriment of SBH's property. Such offences may include misappropriation of SBH's property or unlawfully converting organizational resources into personal use.
- 10) If an employee deliberately discloses confidential company information.

11) An employee who fails to return from leave within 3 working days without satisfactory explanation is subject to termination of employment on the grounds of abandonment.

12) If an employee's incites other employees.

An employee who has abandoned employment shall not be eligible for future employment with SBH.

3.13 Resignation

All contracts of employment provide employees with the opportunity to terminate their services at any time during the course of employment provided the employee gives SBH the stipulated written notice period or pays salary in lieu of notice in accordance with the contract of employment.

Such termination, which is initiated by the employee, is referred to as resignation. SBH reserves the right to require the employee to serve the notice period in full.

It is noted that during the probationary period, both the employee and SBH have the right to terminate employment by giving seven (7) days written notice or paying seven (7) days consolidated salary in lieu of notice.

3.14 Death

Employee up to a defined maximum

3.15 Redundancy

This form of termination may apply to employees whose services are surplus to the organizational staffing requirements. SBH will give one calendar months' notice in writing or pay in lieu thereof and will pay accrued leave as determined by HR.

SBH may in special circumstances continue to pay salaries without requesting service for the staff member during the notice period, in which case benefits will be continued without change for the same period.

3.16 Retirement

SBH has adopted a normal retirement age of 60 years but recognizes the need to retain certain exceptional, highly skilled and productive staff, particularly those in scarce skill disciplines, beyond the age of 60. It accordingly permits extensions (on a case-by-case basis, which requires approval by the Administrator and/or sanctioned by the Board beyond retirement subject to the rules of the relevant retirement funds.

3.17 SBH's Obligations in terminations

It is important that SBH comply with legal requirements and must establish justifiable cause for termination or dismissal. After establishing that justifiable cause exists, a report should be made to the Administrator who will then review the case and approve termination to be done subject to ensuring that management's action is not wanting in the following instances:

1) Want of good faith, e.g., camouflaging the real reason for dismissing the employee.

2) Victimization on tribal, racial, religious or personal grudges.

3) Commission of a basic error or violation of the principles of natural justice; such as denying an employee a chance to defend himself/ herself before dismissing him/her.

4) When the finding is completely baseless or perverse.

5) Where there is undue harshness e.g., terminating the services of an employee where a warning letter would have sufficed.

3.18 Termination benefits

If the service of a staff member is terminated, the following rights are granted by SBH:

- 1) Days worked to the date of termination.
- 2) Balance of leave days due pro-rata up to date of termination.
- 3) Salary in lieu of notices, if applicable.

3.19 Exit Clearance.

- i. Any employee whose employment is terminated or who shall terminate employment with SBH shall return all files, records, keys, and any other materials that are the property of SBH.
- ii. No final settlement of an employee's dues shall be made until all items are returned in appropriate condition and an exit clearance form filled. The outgoing employee will be required to attend an exit interview a day before the final day of separation.
- iii. The cost of replacing non-returned items shall be deducted from the employee's final dues. Furthermore, any outstanding financial obligations owed to SBH shall also be deducted from the employee's final dues.
- iv. Any leave accrued at the point of separation will be paid out to the employee as part of his/her separation entitlement. The maximum leave accrual will be based on the annual allowable leave days policy.

3.20 Exit interviews

The purpose of the exit interview is to establish the reasons for the resignation in order to gather data for improving working conditions and retaining employees. All employees who resign should be interviewed by the HRO in order to determine and record the reason for resignation. Employees may opt to complete the exit questionnaire should they not desire to have an interview.

3.21 Certificate of Service

References are not given to employees who leave. A Certificate of Service will however, be issued to any employee leaving the company's services which states the period employed, the capacity within which a person was employed, the nature of business of employer, length of employment, and if the employee requests, the reasons why the employment came to an end. The certificate shall not contain any judgment on or evaluation of the employee's work but where it is requested by the employee, the employer may provide it in a separate document. The certificate shall so far as be practicable, be written in a language the employee may reasonably be expected to understand.

SECTION 4: WORK SCHEDULE

4.1 Working Hours

SBH working hours are as follows:

- 1) All day employees are expected to work no more than 54 hours a week whereas night workers not more than 48hrs a week. For the purposes of this Section, a week consists of 6 days.
- 2) Employees working on shift basis will be guided by their departmental rotas.
- 3) Every employee is expected to be regular and punctual in attendance. This means being at the workplace, ready to work, at the prescribed starting time each day. Absenteeism and tardiness place a burden on other employees and shall not be tolerated.
- 4) If an employee is unable to report to work for any reason, he shall notify his supervisor before regular starting time.
- 5) The supervisor shall be the person authorized to grant such permission. The employee shall be responsible for contacting his supervisor directly about his/her absence.
- 6) In case an employee sends a text message or leaves a voice mail, such employee must make a follow-up call in the course of that day if they are unable to report on duty.
- 7) If the affected employee shall not report for work and SBH is not notified of his status within seven (7) consecutive days, SBH will treat this as absconding from duty and the employee shall be liable for termination.
- 8) If an employee becomes ill while at work or must leave the office for some other reason before the end of the workday, he/she must inform his/her supervisor of the situation and obtain formal approval.

4.1.2 Lunch Period

Employees shall be allowed a minimum thirty- minutes and maximum of 45mins lunch break.

No one is allowed to take breaks outside the hospital. For any breaks outside the hospital, requests to be made through the Human Resources Officer.

4.1.3 Overtime

- Employees may be required to work beyond the normal working hours. Overtime will be requested by the respective Heads of Departments and final approval by the HRO. If an employee proceeds to work overtime without the HRO's approval, it shall not be paid.
- Only employees that do not have supervisory roles will be compensated either through compensatory leave or in monetary terms.
- Supervisors and managers will be compensated by time off equivalent to additional hours worked. All compensatory leave must be taken within the quarter in which it is earned, failure to which it will be forfeited
- Consistent overtime by an individual will be evaluated to establish whether the section is understaffed or requires restructuring.
- SBH will allow an employee to take an equivalent time off to compensate for the overtime worked as agreed with the supervisor. In cases where monetary compensation is paid for overtime, the rates below will apply:
 - ✓ Hours worked beyond normal hours during weekdays are paid at 1.5 times the hourly rate.

Note

1. *Overtime payment is only payable to staff who are not in a supervisory position and is guided by provisions in the labor laws.*
2. *Overtime plus time worked in normal hours shall not exceed the following number of hours in any period of two consecutive weeks;*
 - a) *One hundred and forty-four hours for employees engaged in night work*
 - b) *One hundred and sixteen hours for day employees.*

4.1.4 Break Periods

Personal breaks are not permitted during official working hours except for the lunch break. However, any employee who has an emergency personal engagement should notify his supervisor and the supervisor to inform the Human Resources Officer in good time to discuss time away from work and make provisions as necessary.

Personal business shall be conducted on the employee's own time and not the company's time.

4.2 Public Holidays

Employees will not be required to work on gazetted public holidays. However, those working on shift or other essential tasks will be compensated for the public holidays by being given time off to be taken within the quarter that they are earned as agreed with their Managers.

SECTION 5: RENUMERATION

5.1 Policy Statement

SBH 's policy is equal pay for equal work. Therefore, in fixing staff salary, SBH will take awareness of the various market factors. SBH will endeavor to pay competitive rates to its workforce. This will enhance SBH's capacity to attract, retain and to reward competent staff while recognizing the relative added value of staff to the organization. All compensation, however, must be within the company's ability to pay.

5.2 Salary Administration

The HRO is responsible for administering salary policy within guidelines set by SBH and for obtaining approvals for exceptional cases as appropriate. This policy provides employees with a general understanding of compensation practices.

5.2.1 Rate of Pay

Each position is classified at a basic pay rate. The basic pay rate is the amount of pay for a position before money is deducted or other non-cash payments are added. SBH gives a consolidated pay which includes various allowances such as car, transport, housing and telephone (all where applicable).

Other non-cash benefits may include:

- a) Employers' NSSF contribution
- b) Medical benefit
- c) Lunch benefit

5.2.2 Entry Rate of Pay

All positions have a minimum and maximum salary scale. The amount between minimum and maximum is called the "salary range". Employees being promoted into new jobs are usually placed on the entry level. However, on external recruitment, should a candidate have exceptional qualifications or the position is difficult fill, or the candidate has a salary based on a certain market rate of pay, the entry rate of pay may be at a higher step but within the salary range.

5.2.3 Pay and Deductions

Employees are paid in arrears once in a calendar month. The employer will make all statutory deductions and remit these to the necessary authorities.

- 1) Salaries shall only be paid monthly and shall be made by electronic transfer.
- 2) The salary of an employee shall be net of statutory deductions (such as P.A.Y.E, NSSF and NHIF) and other deductions.
- 3) A pay-slip indicating the gross salary, deductions made, and the resultant net salary shall be provided to the employee every month.
- 4) Where payment is made on an hourly basis, the hourly rate shall be paid for the number of hours worked during the day. In this case, no payment shall be made for meal breaks, or other period of absence from duty.
- 5) Salary advances will not be provided.

6) Reimbursement of reasonable out-of-pocket expenses incurred during the course of business may be reimbursed upon prior approval.

5.2.4 Error in Pay

Should there be an error in pay resulting in the delay in remitting employees' salary, the employees will be immediately notified of the delay and the necessary steps taken to resolve the matter as soon as possible but within 48 hours.

5. 3 Performance pay

Employees that are eligible for a merit pay adjustment in recognition of outstanding performance. The merit pay concept means adequate compensation for excellent performance and less pay or withholding annual salary increments for work which is average or unacceptable or where staff performance merely meets the bare minimum requirements.

Management shall advise the appropriate tools that will be applied to determine objective criteria of compensating performance—based pay.

The rate of performance pay will be determined by the organizational performance.

5.4 Acting Appointments Related Pay

There are occasions when a staff member has to assume higher responsibilities due to the absence from duty of a more senior member of staff for reasons such as leave or sickness. In such circumstances where staff is appointed to act for a period of (3) three month or less, no additional pay or allowance will be paid as this is considered an opportunity for development and preparation for a senior position.

However, should the acting appointment be for a period longer than three months then the decision of pay will be made at the discretion of the management.

Where staff has been appointed to act in a vacant position, then a decision whether to confirm employee in such acting position or to recruit will be made within three months of the acting appointment. No staff will be maintained in an acting capacity for more than six months.

SECTION 6: EMPLOYEE BENEFITS ADMINISTRATION

6.1 Policy Statement

SBH will provide an employees' benefits program that is competitive in the labor market. SBH's benefits program is designed to help protect employees against significant financial losses due to sickness, disability, or death; to provide employees' rest and renewal; and to provide a means for retirement savings.

SBH provides benefits as indicated below which may be subject to review and revision from time to time:

6.2 Types of Benefits and Related Procedures

6.2.1 Staff Leave

Policy Statement

All employees are entitled to leave in accordance with the agreements and statutory provisions as indicated below. All planned leave has to be mutually agreed by supervisor and employee, taking into account workloads and the employee's needs. Leave must be approved in advance, except when the employee cannot anticipate his/her absence.

6.2.1.1 Annual Leave

Annual Leave Planning

The head of department must prepare the annual leave roster and, subject to exigencies of work, staff leave should be planned in such a manner that will allow staff with excess leave balances to proceed on leave immediately. To facilitate smooth operations unit/departmental heads are encouraged to institute and maintain a leave roster.

The following policy apply:

- i. Annual leave shall be 22 working days per annum or as per the existing contract.

Entitlement and Eligibility

If gazetted public holiday(s) falls within the leave period, such holidays shall be added to the leave entitlement except in the case of maternity leave. The application leaves form in respect to annual leave, compassionate leave, special leave, or permission to be absent etc., shall be completed and approved prior to taking such leave.

Accumulation /Commutation on of Leave

A maximum of ten (10) leave days may be commuted over to the next calendar year. However, staff are required to utilize this within the first quarter of the following year. Excess days will be forfeited if not utilized.

It is SBH policy not to commute leave for cash, and where staff is not allowed to proceed on leave immediately, his/her leave shall be rescheduled and taken in the course of and before the end of the year.

Staff are encouraged to take leave and such leave should be applied for on the prescribed annual leave form, at least 28 days in advance of the date when leave requested is to start.

Heads of Department, employees in the Finance, HR, ICT and Sales & Marketing departments are advised not to take all the 22 days leave days at once. Head of Departments leave applications should go through the Hospital Administrator for final approval.

Reporting Back on Duty

In cases where either annual, compassionate or emergency leave has been approved and taken but due to some unforeseen circumstances the employee is unable to resume work on the due date, then the employee shall contact section heads by whatever means available and request for the extension of the leave. Such extended leave shall be recovered from the accumulated leave if any or from subsequent earned leave.

Procedure on Handing and Taking Over Before & After Leave

In order to ensure that proper handing over and taking over, takes place and to streamline the process, the following procedure on handing and taking over will be followed:

- 1) Unless for emergency cases, which may require up to one-week absence from duty, an employee taking leave of any duration shall be required to hand over his/her pending work and other duties to the reliever, whose name shall be indicated on the leave application form. Where the reliever's name is not indicated for one reason or another, the pending work and other duties performed by the employee shall be handed over to the section head.
- 2) Before proceeding on leave, the employee shall together with the reliever discuss the pending work and how the other duties shall be carried out by the latter at least three working days before commencement of the leave, (this requirement shall not be applicable to emergency leave unless such cases shall be for more than five working days). Any office keys, rubber stamps, official documents, etc., shall be handed over to the reliever within this period.
- 3) After the leave and on reporting back to the office, the employee shall report to the section head before resuming his/her duties to be appraised on the status of his/her duties and other work in the department. The volume of work and how soon the taking over can be done shall determine the period the reliever shall work with the employee for the purposes of handing over. The process shall, however, not exceed three working days.
- 4) It shall be the duty of the section head to ensure that this procedure is followed and any lapses in its continuous implementation/adherence shall be reported to the Departmental head.
- 5) When returning from leave, employee should report only on day shifts. Employees are not allowed to report on night shifts from leave.

6.2.2 Statutory Gazetted Holidays

The following dates indicate the statutory public holidays applicable in the countries with SBH operations:

STATUTORY HOLIDAYS	
New Year's Day	1 st January
Labour Day	1 st May
Madaraka Day	1 st June
Moi Day	10 th October

Mashujaa Day	20 th October
Jamhuri Day	12 th December
Christmas Day	25 th December
Boxing day	26 th December
Religious Holidays with variable dates: Good Friday, Easter Monday Idd Ul Fitr	
Other statutory public holidays may be declared by Government Gazette Notices from time to time	

6.2.3 Sick Leave

After two (2) consecutive months of service with SBH, staff will be entitled to a maximum of seven days (7) working days sick leave with full pay, and thereafter to a maximum of seven (7) working days sick leave with half pay, in each period of twelve consecutive months of service, subject to production of a certificate of incapacity to work signed by a qualified medical practitioner.

An employee who falls sick shall make every attempt to promptly notify the immediate supervisor of his/her condition and inability to report for work. Failure to notify the supervisor shall be construed to be dereliction of duty and disciplinary action may be taken against such employee.

Employee shall be required to present a medical report from an approved medical practitioner on the day that the employee falls sick (This can be sent electronically)

Where an employee is on sick leave for a continuous period in excess of seven days, SBH may refer the case to an approved medical practitioner for professional advice regarding the prospect of the employee's recovery and fitness to resume duty. Details of the medical report will be handled confidentially.

Upon receiving a medical report stating that there are no reasonable prospects of the employee's eventual recovery and fitness to resume duty, SBH shall reserve the right to terminate the employee's contract on medical grounds. In such cases the employee shall be paid all terminal dues in accordance with their contract of employment.

6.2.4 Maternity Leave

Female employees will be entitled to three (3) months maternity leave (90 calendar days) with full pay. Such leave will be exclusive of annual leave due for the year.

Requests for extension of stay after exhaustion of maternity leave and annual leave may be considered on a case-by-case basis but shall be without pay if she has exhausted their annual leave.

6.2.5 Paternity Leave

Male employees shall be entitled to paternity leave of a maximum period of fourteen (14) calendar days during the period of the spouse's maternity leave. This will be accompanied by a copy of the child's birth notification.

6.2.7 Compassionate

Leave in the event an employee is required to attend to critical illness of parents, spouse & child, in case of fire he/she may be granted ten (10) days compassionate leave in a year at the discretion of Management. Any additional leave required above the 10 days will have to be pre- approved and shall be recovered from the employee's annual leave. Employees will fill the leave application form for compassionate leave and forward to HR

Bereavement leave will be given as shown below;

Category	Number of days
Father, Mother, Spouse & Child	7 working days
Sisters & Brothers	4 working days
Mother-in-law & Father-in-law	2 working day

An immediate family in this instance is defined as the employee's spouse, child, mother, father, father-in-law, mother-in-law, brother and sister.

Employee may take extra additional days off from annual leave or unpaid leave if he/she has exhausted all the annual leave days.

6.2.9 Special Leave

SBH may grant special leave to attend to issues such as family emergencies, exams and Such leave may be granted on full, partial or no pay and must be approved by the Administrator.

6.2.10 Leave Without Pay Policy

In cases where staff require additional leave to that which has been granted, they may take leave without pay subject to a maximum of 14 working days leave without pay in any one year. Staff may apply for leave without pay after 12 consecutive months of service with the Company.

6.2.11 Leave of Absence Procedure

The procedure regarding absence from office is as follows:

- 1) Employees shall not be paid while absent from duty without permission.
- 2) Absence for a whole day or more whether on official business or otherwise will require the approval and authorization of the section head.
- 3) Absence for less than one day but exceeding one hour must be brought to the attention of the immediate supervisors.

Managers must ensure that their staff do not leave offices without due authorization and that all leave of absence is properly authorized and forwarded to the HR Department to be adjusted against the individual leave entitlement.

6.2.12 Medical Benefit

All permanent employees shall be entitled to the medical coverage for inpatient and outpatient services at South B Hospital only as follows:

Out-Patient: 55% of the bill by yourself and 45% of the bill covered by SOUTH B HOSPITAL

In-Patient: 75% of the bill by yourself, 25% of the bill covered by SOUTH B HOSPITAL except for outsourced services. Coverage is availed to staff and where applicable named spouse and a maximum of four (4) named children below twenty-three (23) years (biological and/or legally adopted).

Employees will access the above services by following the normal hospital patient journey. Employees will not be allowed to get any of the hospital's services without following the hospital process (unless it is for drug refills). If the process is not followed employees will pay the bill as any normal patient.

The cost of lab tests, prescribed drugs, admissions, maternity, surgeries shall be deducted from employee's payslip at the end of the month.

6.2.13 Lunch Assistance and Staff Meals

Employees on duty will be offered lunch for those working between 7.00am – 7.00pm.

SECTION 7: PERFORMANCE MANAGEMENT

7.1 Policy Statement

The purpose of the performance management policy is to manage performance of all the staff, develop their potential and establish training needs so as to support the company's strategic goals by measuring their performance against aligned goals and action plans. In addition, performance management plays an important role in the design of career paths and succession planning.

7.2 Objectives of Performance Management

SBH has in existence a formal performance management process of evaluating the staff's job performance both after probation, on a quarterly and annual basis. The performance management scheme has the following main objectives:

- i. Identification of existing and potential manpower strengths and weaknesses as a basis for manpower and corporate planning.
- ii. Provision of a basis for determining salary reviews, promotions, transfer, redundancies and dismissals.
- iii. Determination of training needs on an individual and group basis.
- iv. Identification and communication of individual strengths and weaknesses— "letting the employee know where they stand".
- iv. Stimulation of higher performance, development of potential and increased job satisfaction.

7.3 Performance Management Process

Goal Setting

a) The Administrator will ensure that each department receives the overall corporate strategic goals and objectives set for the company for each particular year.

b) HoDs will facilitate the cascading of the company's strategic goals and targets to all members of their respective departments, to ensure their understanding and support for the goals.

c) HoDs will ensure that the company's strategic goals are broken down into individual targets related to roles within the department.

Thereafter, the Manager will harmonize the content of their respective score cards and their key performance measures with his/her individual employees by following these steps:

Step 1

The manager and employee meet to jointly discuss the company's strategic goals.

Step 2

The Manager and the employee jointly decide on an action plan to achieve the individual's targets/goals.

Step 3

The Manager and employee agree on specific timelines for formal evaluations to be conducted with regards to progress towards attaining the goals.

The outcomes of the above are incorporated into a written individual performance scorecard signed by both the manager and the employee.

7.4 Staff Performance Appraisal

The Staff Performance Appraisal is the process of obtaining, analyzing, and recording information about the relative worth of an employee to the organization.

The Staff Performance Appraisal (which should include the annual setting of mutually agreed objectives between supervisor and subordinates, within the context of each individual's job descriptions) is an integral part of the performance management.

7.4.1 Frequency of Performance Appraisal

Staff performance appraisal shall be an ongoing process to ensure that employee performance is in line with set targets and objectives. However, in an effort to continuously monitor and determine the effectiveness of our human resources as a whole in achieving our corporate goals, in addition to the regular quarterly individual performance evaluations of all categories of staff, a formal staff appraisal shall be done quarterly.

The staff performance evaluation will be an ongoing exercise which management will consciously undertake to provide them with a regular audit of the skills and knowledge of the employees in performing their assigned tasks. It will also enable the management to review the strengths and weaknesses of the staff at all levels.

Through the exercise, individual performance weaknesses and strengths will be evaluated. This will offer the management the opportunity to obtain regular feedback on specific areas that require improvement in relations to past performance as well as future performance. Also, the managers will be able to identify training needs of the individual employee and for the whole group.

7.5 Probationary Period Performance Reviews

The probationary period for employees shall be six (6) months from the date of reporting on duty for the first time. During this time, employees shall have the opportunity to evaluate SBH as a place to work and Management shall have its first opportunity to evaluate the employee. During this introductory period, both the employee and SBH have the right to terminate employment by giving seven (7) days written notice, or paying seven (7) days consolidated salary in lieu of notice.

Fourteen (14) days before the end of the probation period, the relevant supervisor will forward the employee's Performance appraisal form with recommendations to the HR.

Upon expiry of the probationary period any of the following decisions shall be made:

- a) The employee shall be confirmed.
- b) The probationary period shall be extended for a further period of up to three months.
- c) The employment may be terminated within seven (7) days' notice and separated from SBH.

During the probationary extension period, all conditions of the probationary period shall apply. No further extension shall be granted beyond the additional three-month period.

7.5.1 Probationary Reviews

Employees on probation shall have interim performance reviews conducted on a monthly basis. In circumstances where the probationary period may be extended the employee will be notified seven days in advance of the expiry of the initial probationary period.

Where unsatisfactory performance is identified concerning an employee on probation, reasonable steps are taken to give the employee an opportunity to make the required improvement. If this fails to address the performance issues, the employment of the employee on probation shall be terminated.

Employees who satisfactorily completes the probationary period and are appointed on a permanent basis shall be provided with on-going performance reviews that are consistent with the process of performance review, and if necessary, performance improvement.

7.6 Performance Improvement interventions

- ✓ SBH requires a minimum standard of performance. If an employee does not meet this standard, SBH will take appropriate corrective action. This includes guidance, on the job training, coaching and mentoring.

Employees requiring performance improvement will be counselled and provided the opportunity to reach the standards expected of them.

7.6.1 Performance Improvement Procedure

- a) The manager will advise the employee of any shortfall in their performance.
- b) SBH will provide support such as training where relevant.
- c) The manager will advise the employee in clear terms the performance gap.
- d) The employee will be provided with a performance improvement plan for a period of three (3) months upon which the performance will be reviewed. The performance improvement plan should include have clear milestones and deliverables.
- e) Should the employee's performance not reach desired standards, the manager will make a recommendation to HR on termination of contract.
- f) The manager concerned will keep a record of all meetings, training and/or coaching given and a summary of discussions and put a copy on the employee's personnel file.

7.7 Promotion

Promotion is the advancement of an employee from one job position to another job position that has a higher salary range, a higher-level job title and more often, higher level job responsibilities.

This policy is based on the recognition that in the course of meeting company objectives, the duties and functions of an employee may change in complexity and responsibility. Promotions are based on status change that involves increasing authority and responsibility levels. Good past performance will be taken into consideration when recommending a staff for promotion.

In recommending an employee for promotion, the business, organizational, fiscal and legal implications of the request shall be fully explained and justified.

Along with the increased responsibilities, the promoted employee shall receive an increase in salary, sufficient induction to begin the new position, and a new job description.

7.7.1 Eligibility

All employees who have successfully completed the probation period specified by conditions of employment or contract shall be eligible to be considered for promotion.

7.7.2 Implementation

Supervisors shall encourage all employees within their areas of responsibility in the pursuit of career advancement and ensure that all qualified internal applicants, are duly considered for vacancies within the Company before recruiting external candidates.

7.7.3 Procedure for Promotion

Supervisors should prepare a justification for the recommendation of promotion to the management. If the promotion exists either through the filling of a vacancy or through re-organization, all data chronicling the candidate's most recent performance should be included in addition to:

- i. A statement and proof of required skills and qualifications of the candidate is required.
- ii. A current job description of the candidate.
- iii. The latest annual performance evaluation report.
- iv. A copy of the vacant position's job description or a statement outlining the new duties and responsibilities.

Management shall review all the data compiled to determine the appropriateness of the promotion with respect to short- and long-term staffing needs as well as the budget implications and make the final decision to accept or reject the recommendation for promotion. The effective date of a promotion shall be specified in the letter of promotion.

SECTION 8: EMPLOYEE TRAINING & DEVELOPMENT

Statement

SBH will equip and build capacity of its employees through provision of adequate training and learning opportunities to enable them to carry out their job competently and efficiently. Our business believes training is a two-way process. We encourage employees to actively participate and to highlight any gaps in their own skills or knowledge they believe they have.

8.2 Purpose

SBH provides opportunities, facilities and financial resources to enable all its employees to acquire and develop the skills set, exposure and knowledge required to perform their duties more effectively and develop their potential for future opportunities and demands.

Both internal and external training and learning is of fundamental significance to SBH as it increases the effectiveness of employees in their immediate and future tasks. It also determines the progress to be made by the employees within SBH. A systematic approach to determining training needs is therefore, dictated by the interests not only of SBH itself but also of the employees who constitute it.

8.3 Objective

The value to the Company of having well-planned staff training is enormous and it is therefore expected that all training programs will address the following:

- 1) Knowledge and skills necessary to perform and to meet standards of performance which increases value to the organization.
- 2) Versatility for transfers and qualifications for promotion.
- 3) Reduced dissatisfaction, absenteeism and turnover, because training helps both new and experienced employees to use their full individual capacities.
- 4) Enable employees to adjust to new and relevant work methods and processes that are introduced from time to time.

The orientation in the training strategies and programs will be structured in such a way that the objectives are prioritized, inter alia to:

- 1) Enhance SBH's competitiveness and capabilities.
- 2) Achieve quality and standardization which would ensure effective and efficient service delivery and competitive products.
- 3) Develop business focused training and human resources development programs which are geared towards improving SBH's overall performance.
- 4) Ensure availability of adequate staff competencies through training for sustained growth and expansion.
- 5) Develop internal manpower capacities through recruitment of new staff with relevant skills, knowledge and attitude required in managing on-going organizational changes.

8.4 Training Options

Training options may include:

- ✓ Internal or external seminars and workshops.
- ✓ Self-study courses including e-learning.
- ✓ Short courses in external learning institutions.

8.4.1 On the Job Training

On-the-job training method will be preferred in management development programs that are tailored to the individual needs, job related and operationally convenient.

On-the-job training will be part of a deliberate policy being undertaken by superiors/managers to expose their subordinates to new work methods or responsibilities as part of their development and may be done through the following:

- ✓ Coaching/instructing
- ✓ Delegation
- ✓ Job rotation
- ✓ Training positions, management trainee or acting appointments
- ✓ Planned work activities through specific work assignments to develop staff experience and ability and/or external attachments
- ✓ Review and evaluation at periodic performance appraisal and counselling interviews.

On-the-job training, ideally, will be aimed at exposing staff to various key areas of operations, inductions, and the company's business model, product knowledge among others.

On the job training is a very important element to employees' growth and development. All managers have a duty and responsibility to assist in the development of staff:

8.4.2 External Courses and Seminars

External courses and seminars are aimed at removing individuals from the stresses and on-going demands of the workplace, and enabling staff to focus fully on the learning experience.

In addition, they provide opportunities for meeting people from other departments or organizations thus, employees are exposed to useful new ideas and experience while they make potentially useful contacts.

Some common programs include:

- a) Symposiums/workshops.
- b) Team-building session.
- c) Short duration third party courses.
- d) Evening courses

The primary aim of exposing staff to external courses and seminars is therefore, to enable them to improve their job performance by extending knowledge improving skills and modifying attitudes so that they can work in the most

efficient and satisfactory way and hence, ensure that they are giving their best to the growth of SBH as well as their own personal development.

8.4.3 Self Sponsored Study Courses

SOUTH B HOSPITAL encourages staff to pursue courses that may enhance and improve their performance and knowledge relevant to their current and future jobs. In this respect, staff may identify self-sponsored programs they wish to undertake without necessarily seeking to be sponsored or reimbursed for subsequent training expenses. Employees to always inform the HR on any change of shifts due to examinations.

8.5 Training Procedure

- 1) Courses/seminars will be selected with care not only on a group basis but also individually to suit the employee's and SBH specific training needs.
- 2) The training needs of the staff will be specified in the quarterly and annual performance appraisal forms and the HR department will compile and collate the recommendations from the appraisal forms to prepare a planned training program for all SBH staff.
- 3) All other training recommendations apart from those already planned and approved will be sent to the HR department, for consideration by the Administrator, four (4) weeks before the commencement of the course/seminar.
- 4) After the completion of the course/seminar and within two (2) weeks the staff will be required to submit a written report on the subjects covered and on how he/she intends to put into practice the knowledge gained as well share with relevant colleagues.
- 5) The section heads will assist their staff to put the benefits derived from the training into practice as soon as possible so as to reinforce what has been learnt.
- 6) The management will confirm whether the training has achieved the intended objectives and will submit a report to the HR department, on the effectiveness of the training, on the employee's training needs as reflected in the employees post training performance. The report will be submitted three months after the training.
- 7) The management will play an active role in making sure that all training activities in their departments are carefully monitored to ensure that both the employee and SBH get the best value or "returns" from the investment made in HR development.
- 8) If an employee is called upon to attend a training, employees are expected to cooperate. If one is off duty, he/she will be required to attend and will be given an off day at a later date.

NOTE; Outstanding performing employees will be given the first priority if training opportunity arises as a way of reward.

8.6 NITA Certification

Courses should be aligned to NITA (National Industrial Training Authority), formerly DIT, and all statutory requirements. The training provider must submit proof of accreditation or application for accreditation of the training course in question.

SECTION 9: OCCUPATIONAL HEALTH & SAFETY (OH&S)

9.1 Policy Statement

SBH will provide a safe working environment for the health, safety and welfare of our employees, contractors, visitors and members of the public who may be affected by our work. This policy will be in accordance with the local legislation regarding workplace safety.

To do this, SBH will:

1. Develop and maintain safe systems of work, and a safe working environment.
2. Consult with employees on safety.
3. Provide protective clothing and equipment and enforce its use where applicable.
4. Provide adequate insurances to cover staff and visitors.
5. Provide medical and first aid facilities.
6. Provide information and training for employees.
7. Assess all risks before work starts on new areas of operation, for example, buying new equipment and setting up new work methods, and regularly review these risks.
8. Remove unacceptable risks to safety.
9. Provide employees and contractors with adequate facilities (such as clean toilets, clean drinking water, and hygienic eating areas).

All persons responsible for the work activities of other employees are accountable for:

1. Identifying practices and conditions that could injure employees, clients, members of the public or our environment.
2. Controlling such situations or removing the risk to safety. If unable to control such practices and conditions, report these to their manager.
3. Making sure employees use personal protective equipment where necessary, and training them to use the equipment correctly.
4. Ensuring that the personal protective equipment is maintained and working properly.

SBH demands a positive, proactive attitude and performance with respect to protecting health, safety and the environment by all employees, irrespective of their position.

9.2 Work Injury Benefits

SBH will comply with the provisions of laid down Labour laws providing compensation for injuries and occupational diseases incurred by employees in the course of their employment.

9.2.1 Injury Handling Procedure

Consider the following guidelines when handling an injury at the workplace: - The priority is medical attention. For an apparently serious injury also call an ambulance.

The manager must write a report to be submitted to the HR department and should include:

1. Employee's name and job details.
2. Time and date of injury.
3. Exact location the injury/incident occurred.
4. How the injury/incident happened.
5. Details of the injury/illness and the part/s of the body injured.
6. Names of any witnesses.
7. Name and signature of the person entering details.
8. Date the employer was notified.

9.3 Smoking policy

Smoking is not permitted on SBH premises at any time. Employees who smoke will be required to take breaks only during the allocated official breaks, i.e., lunch break.

9.4 Alcohol & drugs policy

SBH is concerned about factors affecting an employee's ability to safely and effectively do their work to a satisfactory standard. The business recognizes that alcohol or other drug abuse can impair short-term or long-term work performance.

SBH has a zero-tolerance policy in regards to the use of alcohol or illicit drugs on their premises. SBH will do its utmost to create and maintain a safe, healthy and productive workplace for all employees. Contravening either of these points may lead to summary dismissal.

SECTION 10: HOUSE RULES

10.1 Policy Statement

SBH expects its employees to maintain a high standard of conduct and work performance to ensure that the business maintains its good reputation with clients and other stakeholders. Good personal conduct contributes to a good work environment for all.

This involves all employees by:

- ✓ Observing all policies and procedures.
- ✓ Treating colleagues with courtesy and respect.
- ✓ Treating clients in a professional manner at all times.
- ✓ Working safely always.

Employees are expected to maintain a high standard of personal hygiene, be clean, tidy, presentably dressed and well groomed. Body odor should be minimal, and perfumes should be used in moderation. Well-groomed and tidy hairdo for both men and women. Accessories should be moderately worn.

Gentlemen are expected to wear shirts, formal and khaki trousers, jacket (wear necessary) and ties (where necessary). Formal ladies' trousers are allowed, however, tight fitting trousers, slacks or shorts, sleeveless, low neck and transparent tops should not be worn during official working hours. Open shoes including sandals, flip flops and casual shoes are not acceptable.

SBH reserves the right to request an employee to dress to an appropriate standard as a condition of employment.

10.2 Uniform policy

Uniforms and protective clothing where issued must be worn at all times when employees are on duty. Employees are responsible for ensuring that uniforms and protective clothing issued to them are maintained in a clean condition and in a proper state of repair at all times.

Uniform reflects the corporate image and may not be changed or modified without the Administrator's authority.

10.3 Telephone calls

It is expected that private calls will be kept to reasonable levels. All official calls will be handled with utmost professionalism.

10.4 Email policy

- i) Email facilities are provided for formal business correspondence.
- ii) Employees should maintain the confidentiality of sensitive information.
- iii) Limited private use of email is allowed if it does not interfere with or distract an employee's work.

However, management has the right to access incoming and outgoing email messages to check if an employee's usage

- iv) Non-essential emails and large attachments, including personal messages, should be deleted regularly from the 'Sent Items', 'Inbox' and 'Deleted Items' folders to avoid congestion. Employees are expected to file their email at least once a week.

v) All emails sent must include the approved business disclaimer and signature.

To protect SBH from the potential effects of the misuse and abuse of email, the following instructions are for all users:

- i. No material is to be sent as email that is defamatory, in breach of copyright or business confidentiality, or prejudicial to the good standing of SBH in the community or to its relationship with employees, customers, suppliers and any other person or business with whom it has a relationship.
- ii. Email must not contain material that amounts to gossip about colleagues or that could be offensive, demeaning, persistently irritating, threatening, discriminatory, harassment of others or concerns personal relationships.
- iii. The email records of other persons are not to be accessed except by management (or persons authorized by management) ensuring compliance with this policy, or by authorized employees who have been requested to attend to a fault, upgrade or similar situation. Access in each case will be limited to the minimum needed for the task.
- iv. When using email, one must not pretend to be another person or use another person's computer without permission.
- v. Excessive private use, including mass mailing, "reply to all" etc. that are not part of the person's duties, is not permitted.

Failure to comply with these instructions is a disciplinary offence and will be investigated. In serious cases, the penalty for an offence, or repetition of an offence, may include dismissal.

10.5 Internet use

The internet is provided by SBH for business use ONLY and will be guided by the ICT policy.

All employees will be expected to sign the IT Policy acknowledgement form.

10.6 Access into office premises

Employees will only be permitted access to the office premises during official office hours. Access beyond the stipulated hours can only be granted upon prior approval from Management. Employees are required to clock in and out the biometric machine upon their entry and exit outside the official working hours in all SBH office premises.

Employees will be required to seek permission to access restricted areas within the company. Only authorized employees can access restricted office records.

10.7 Workplace Environment

It is every employee's responsibility to ensure that his or her place of work, including cloakrooms are always kept clean and tidy. Employees are expected to respect the environment by conserving water and electricity, disposing plastic and sharps appropriately and using recycled paper and envelopes wherever possible.

SECTION 11: ETHICAL & LEGAL RESPONSIBILITIES

11.1 Code of Conduct

SBH is a player in the health sector whose customers are the many individuals who rely on the quality of our products and services for their well-being. It is appropriate that we are seen to operate responsibly and with ethical integrity in our business conduct and in our corporate governance. As such, we should avoid even the suggestion of impropriety, and as matter of principle, there should be no risk to our reputation if any details about our business affairs were to become public knowledge. At all times our business must be conducted honestly and scrupulously, free of deception, fraud, or any other prejudice to third parties.

Code of Ethics

Much of ethics is about integrity, in terms of applying basic values to the decision-making processes and therefore living in a way that allows your personality to be expressed in what you do. Ethics is about the values that lie behind moral choices, the reasons given for them, and the language used to describe them.

There is always a need to be assured of quality, increase productivity on and lower costs at the same time. This will be easy if all staff have a positive attitude, are honest and responsible, with a high sense of integrity.

Therefore, this code of ethics will enable employees to maintain high ethical standards at all times and to appreciate any restrictions in place as well as to understand their responsibilities.

Guiding principles

1) Committed to growth

Our commitment to growth should be self-evident in both the organization and the staff as persons.

2) Hire quality people

The company will retain its commitment to hire quality people, basically on merit and using the available HR tools and processes.

3) Take responsibility for our careers and personal growth

All staff shall take active responsibility for their own personal and career development.

4) Control our egos, internally and externally

All staff shall at all times keep their egos and temperaments under control.

5) Remain ethical throughout

All staff shall retain the highest level of ethics at all times.

6) Elimination of bureaucracy

All office holders will do their best to defeat bureaucracy and procrastination. Always work with a sense of urgency.

7) Community enrichment

SBH will show concern for the community around us by participating in just causes of benefit to them, the company and the larger society in general.

8) Communication in all directions

SBH encourages open door policy and all-round communication.

9) Personal conduct

- ✓ The conduct of our staff portrays the corporate image of the company.
- ✓ We should strive to reflect positive attitudes at all times.
- ✓ We should have a smart and decent appearance at all times. We should avoid the company of persons whose integrity is questionable. We should also desist from habits that are offensive to our customers and visitors, such as eating or smoking while attending to them, or stopping mid-way to make unnecessary calls.
- ✓ We should communicate in languages understood by all i.e. English and Kiswahili.

10) Customers

- ✓ All staff should treat customers as if they were their own.
- ✓ Customers should be accorded undivided attention to ensure we retain them.

12) Relationships with Suppliers

It is as important for SBH to secure satisfactorily its sources of supplies as it is for the company to achieve and maintain market penetration. To this end, the viability and well-being of SBH's -suppliers must be a key concern of management and staff. We have a duty to ensure that the company observes the terms of purchase orders and contracts, including the payment of suppliers according to agreed payment terms.

While it is appropriate that due consideration be given to the quality of past service rendered by a supplier, the placing of an order for goods or services should always be demonstrably defensible on commercial grounds, and as a general principle SBH's employee should be active in seeking new sources of supply. Excessive dependence upon particular sources of supplies should be avoided whenever possible.

13) Relationships

Due to the size of the company, people working together who have family or other close relationships may hamper good working order and to some extent may interfere with relations with other employees. To avoid this situation, the company discourages close relationships, such parent and child, niece or nephew, etc. Should there be any exception; the same shall be with the authority of the Administrator on a case-by-case basis. In any case, no person shall be supervised or appraised by a relative. No romantic relationships are allowed.

14) Business opportunities

No employee shall pose any kind of business competition to the company whatsoever. Such competition would come in the form of acquiring property that SBH's is interested in or diverting for a commission business that would otherwise come to SBH. If it happens it will be deemed to constitute a conflict of interests.

15) Conduct towards Employees

SBH is committed to its employees and believes that it succeeds through the dedication of all its employees. Their motivated involvement, work satisfaction and security are high priorities. In part, this depends upon the implementation of appropriate policies so that employees share in the company's success, and upon policies relating to employees' welfare, health and safety.

No member of staff shall discriminate so that another member of staff (or a member of staff of a contractor, supplier or customer) is victimized or less favorably treated than another on grounds of race, colour, marital status, religion, sex, ethnic or national origin, or legal political activity.

Treatment shall at all times be fair in terms of compensation, job security, work experiences, recognition of achievement and opportunities for advancement.

16) Staff Recruitment

In line with the commitment to hire quality people and on merit, staff shall be recruited for their relevant aptitudes, skills, experience and ability; and their advancement shall be on the same grounds according to policy and the opportunities available within SBH.

Employment practices including recruitment practices, contract terms and working conditions shall be sensitive to the local culture to ensure that company conduct does not contribute to unacceptable social tensions or malaise.

17) Working Relations

SBH seeks to ensure that the dignity of employees is maintained at all times, and that employee's exhibit mutual respect for each other at all times - both at work and also at business-related functions.

Harassment, in the form of discrimination - in action, writing or through remarks, unwelcome verbal and physical advances and derogatory remarks, or other forms of harassment, is unacceptable. It is the duty of all management staff and employees to ensure that their behavior at no time contributes towards the creation of an intimidating, offensive or hostile work environment.

Managers and supervisors must be as open and candid with employees as possible. Staff also must be made to feel that they can communicate upwards without formality, rebuff, bitterness or victimization.

18) Involvement in Community Affairs

SBH has a duty to enhance the welfare of the communities where we do business; therefore, we will seek to improve the quality of life of the ordinary people who form our client base, while avoiding conduct prejudicial to their best interests.

Staff should be proactive in searching out appropriate opportunities to contribute positively to community affairs. Our contributions may be in leadership by initiating or steering community projects or may be supportive in terms of donations of facilities, equipment, materials, time or cash.

Our support should be consistent with SBH's business interests and corporate image, and should have a clear

19) Customer Relations and Product Quality

SBH's future depends upon the continuous satisfaction of our customer needs in a competitive environment. Staff are expected to consistently apply the following business principles in practice:

- ✓ Strive to ensure that the specifications of our products meet or exceed customer requirements at economical price.
- ✓ Strive to provide services which are excellent value for money, and are delivered courteously and with sensitivity to our clients' requirements.
- ✓ Endeavour in all circumstances to ensure that all information about our products and services is reliable and a sufficient basis for fully informed customer decision making and customer use.
- ✓ Be truthful and not misleading in our public relations, marketing and advertising.

- ✓ Be committed to satisfying enquiries, complaints and suggestions thoroughly and promptly.
- ✓ Be committed to meeting or exceeding all statutory requirements with regard to compliance and reporting.

20) Political Activities

- ✓ Although the company does not prohibit interest in the political and government processes: Staff shall not represent or appear to represent the company in political matters.
- ✓ No member of staff shall use the address or the name of the company to acquire political literature or collection of funds towards some political end.
- ✓ Any employee desirous of contesting an elective political seat under the sponsorship of any political party must resign from the company beforehand.

Any employee serving on a committee of a political party will be bound to ensure the following: -

- ✓ To avoid conflict of interest with the company.
- ✓ Individual participation is not made to appear to be sponsored by the company.
- ✓ Political duties do not interfere with performance at work.
- ✓ Disclose in advance to the company management.

Breach of Code of Ethics

The management of this company is committed to these standards as they constitute an important part of an employee's responsibilities to the company. It therefore follows that breaching these standards can attract disciplinary action. It is therefore important for all employees to complete the code of ethics form as a confirmation of having read and understood the code and confirming to comply. Heads of departments in liaison with the HR department should help the staff to understand and internalize this code

11.2 Conflict of Interest

Conflict of interest arises whenever the personal, professional or business interests of an employee are potentially at odds with the best interests of SBH.

All employees are required to act in good faith towards SBH. Employees need to be aware of the potential for a conflict of interest to arise and should always act in the best interests of SBH.

As individuals, employees may have private interests that from time-to-time conflict, or appear to conflict, with their employment with SBH. Employees should aim to avoid being put in a situation where there may be a conflict between the interests of SBH and their own personal or professional interests, or those of relatives or friends. Where such a conflict occurs (or is perceived to occur), the interests of SBH will be weighed against the interests of the staff member and resolved in favour of SBH unless exceptional circumstances exist.

It is impossible to define all potential areas of conflict of interest. However, if an employee is in doubt as to whether a conflict exists, they should raise the matter with their supervisor.

Procedure;

Employees must:

- 1) Declare any potential, actual or perceived conflicts of interest that exist on becoming employed by SBH to management through the HR office.
- 2) Declare any potential, actual or perceived conflicts of interest that arise or are likely to arise during employment by SBH to management.
- 3) Avoid being placed in a situation where there is potential, actual or perceived conflict of interest if possible.
- 4) Declare any relative and/or spouse running a related business in whatever scale using the Declaration of Conflict-of-Interest Form.

If an employee declares such an interest, SBH SOUTH B HOSPITAL will review the potential areas of conflict with the employee and mutually agree on practical arrangements to resolve the situation.

Employees must:

- Disclose any other employment that might cause a conflict of interest with SBH to their manager or the HR office. Where there are external involvements that do not represent a conflict of interest, these must not affect performance or attendance whilst working at SBH. If such involvement does affect performance or attendance it will be considered a conflict of interest.
- Not set up or engage in private business or undertake other employment in direct or indirect competition with SBH using knowledge and/or materials gained during the course of employment with SOUTH B HOSPITAL even after their resignation from the company for a period of six (6) months
- Not engage in other business interests during work hours.
- Failure to declare a potential, actual or perceived conflict of interest or to take remedial action agreed with SBH in a timely manner may result in disciplinary action against the employee up to and including dismissal.

11.3 Money Borrowing

Money lending and borrowing among employees is prohibited if it involves the Company in any way whatsoever.

11.4 Intellectual Property and Security

All intellectual property developed by employees during their employment with SBH including discoveries or inventions made in the performance of their duties related in any way to the business of SBH will remain the property of SBH.

Employees may be given access to confidential information, data, business property, keys to premises or any other business-related property/information in the performance of their duties. This must be protected and used only in the interests of SBH.

11.5 Whistle Blowing

The SBH Code of Conduct requires all staff members to observe high standards of business and personal ethics in the conduct of their duties and responsibilities. As employees and representatives of the company, staff are expected to practice honesty and integrity in fulfilling their respective work responsibilities and compliance with all applicable laws and regulations.

Reporting Responsibility

It is the responsibility of all staff members to comply with the Code and to report violations or suspected violations accordingly.

Procedures:

1) No Retaliation

No employee who in good faith reports a violation of the Code shall suffer harassment, retaliation or adverse employment consequences. An employee who retaliates against someone who has reported a violation in good faith is subject to discipline up to and including termination of employment.

2) Reporting Violations

This policy addresses the company's open-door policy and suggests that employees should share their questions, concerns, suggestions or complaints with someone who can address them properly. In most cases, an employee's supervisor is in the best position to address an area of concern.

Should staff not feel comfortable speaking with their supervisor they are encouraged to speak with the Human Resource Officer or with any other HoD. Supervisors are required to report suspected violations of the Code of Conduct to the HR Officer, who has specific and exclusive responsibility to investigate all reported violations.

3) Acting in Good Faith

Anyone Hinge complaint concerning a violation or suspected violation of the Code must act in good faith and have reasonable grounds for believing the information disclosed indicates a violation of the Code. Any allegations that prove not to be substantiated and which prove to have been made maliciously or knowingly to be false will be viewed as a serious disciplinary offence.

4) Confidentiality

Violations or suspected violations may be submitted on a confidential basis by the complainant or may be submitted anonymously. Reports of violations or suspected violations will be kept confidential to the extent

5) Handling of Reported Violations

The Human Resources Officer will notify the sender and acknowledge receipt of the reported violation or suspected violation within five business days. All reports will be promptly investigated, and appropriate corrective action will be taken if warranted by the investigation.

11.6 Equal Employment Opportunity

SBH provides equal employment opportunity to all qualified persons without discrimination or harassment in accordance with Section 5 of the Employment Act. SBH will make reasonable job accommodation for persons with disabilities who can perform the essential functions of the position for which they are qualified and selected.

The objective of SBH's Equal Opportunity Policy is to improve business success by:

- ✓ Attracting and retaining the best possible employees;
- ✓ Providing a safe, respectful and flexible work environment; and
- ✓ Delivering our services in a safe, respectful and reasonably flexible way

SBH provides equal opportunity in employment to all suitably able people without discrimination or harassment. Hiring and promotion decisions are based solely on determination that the candidate has the right skills and competencies for the position.

SBH does not and shall not discriminate based on the following-:

- ✓ Age
- ✓ Disability/impairment
- ✓ Job cadre
- ✓ Marital status
- ✓ Parental status
- ✓ Physical features
- ✓ Political activity/belief
- ✓ Pregnancy
- ✓ Race, ethnicity, tribal background
- ✓ Religious activity/belief
- ✓ Sexual orientation
- ✓ Gender or any other practices deemed to be discriminatory

11.7 Harassment

SBH will do its utmost to treat employees fairly and equitably in an environment free of bullying and harassment, including sexual harassment. We aim to foster a professional, open and trusting workplace.

11.7.1 Procedure:

To make a complaint If you believe you are being, or have been, harassed, the following procedure will apply:

- 1) Inform the offender that the behavior is offensive, unwelcome, and against business policy and should stop (only if you feel comfortable enough to approach them directly). Keep a written record of the incident(s).
- 2) If the unwelcome behavior continues, contact your supervisor or manager for support.
- 3) If this is inappropriate, you feel uncomfortable, or the behavior persists, contact another relevant senior manager or the Human Resource Officer.

11.7.2 Procedure: To receive a complaint

When a manager or supervisor receives a complaint, they should follow this procedure:

- 1) Listen to the complaint keenly and treat it confidentially. Allow the complainant to bring another person to the interview if they choose to.
- 2) Request the complainant to document the whole issue in their own words and submit it to the manager after the verbal briefing
- 3) Discuss, clarify and agree on the next action with the complainant. If investigation is not requested:
 - ✓ Act promptly
 - ✓ Maintain confidentiality.
 - ✓ Pass your notes on to your manager if necessary.

If an investigation is requested or is appropriate, follow the next procedure.

11.7.3 Procedure: To investigate a complaint

A committee appointed by the HR Officer will be required to follow this procedure.

- 1) Do not assume guilt.
- 2) Interview all directly concerned, separately.
- 3) Interview witnesses, separately.
- 4) Keep records of interviews and investigation.
- 5) Interview the alleged harasser, separately and confidentially and let the alleged harasser know exactly what they are being accused of. Give them a chance to respond to the accusation(s). Listen carefully and record details.
- 6) Ensure confidentiality, minimize disclosure.
- 7) Decide on appropriate action based on investigation and evidence collected.
- 8) Check to ensure the action meets the needs of the complainant and SBH

- 9) Discuss any outcomes affecting the complainant with them to make sure where appropriate you meet their needs.

Possible outcomes

If after investigation management finds the complaint is justified, the complainant may be entitled to any or all of the following:

- i. A commitment the behavior will cease.
- ii. A private apology (verbal or written).

SECTION 12: HIV/AIDS AT THE WORKPLACE

12.1 Policy Statement

SBH commits itself to making the prevention and management of HIV/AIDS a priority in the workplace, by creating a work environment in which infected and affected employees are not discriminated and stigmatized. While SBH shall continue to employ the infected employees, it is the responsibility of each employee to minimize the risks of HIV/AIDS infection by avoiding conduct that may inevitably lead to infection.

12.2 Workplace Principles

- a) HIV screening shall not be a requirement for recruitment or promotion or training decisions. However, employees are encouraged to confirm their HIV/AIDS status through voluntary counselling and testing (VCT) services for their personal benefit.
- b) No employee shall be discriminated against or contract of employment terminated based solely on his/her perceived or actual HIV status.
- c) Sick leave shall be granted as stipulated in this HR Manual and additional sick leave days may be considered at the discretion of SBH depending on the circumstances of each case.
- d) HIV/AIDS shall not be a cause for termination of employment and infected employees shall be allowed to work as long as they are fit and available for work until a qualified medical practitioner declares them unfit for further service.
- e) An employee's HIV status shall not be disclosed to an unauthorized person and any employee who discloses such information shall be liable for disciplinary action.

12.3 Management Responsibility

Every person with management responsibility shall be required to demonstrate leadership in addressing the HIV/AIDS pandemic in the workplace through participation in awareness programs and counselling activities for all employees.

Every person with management responsibility shall be expected to be sufficiently educated and informed about the HIV/AIDS pandemic in relation to developments in prevention and treatment of HIV/AIDS in order to be in the position to guide other staff members in matters concerning the scourge.

12.4 Employee Responsibility

It shall be the responsibility of each employee to establish their HIV/AIDS status through voluntary counselling and testing.

It shall be the responsibility of each employee to take appropriate precautions to protect himself / herself against infection.

It shall be the responsibility of each employee to seek information/education on the HIV/AIDS pandemic and ways to combat it

SECTION 13: DISCIPLINE POLICY

13.1 Policy statement

It is the policy and the objective of SBH to promote behavior in terms of acceptable standards amongst its employees both for the wellbeing of the individual and the achievement of the Company Objectives.

Depending upon the gravity of the offence, the capacity to make restitution, and the staff member's previous conduct, there are various penalties that may be imposed.

SBH will ensure that all employees are aware of the contents as far as disciplinary action is concerned. To this end, SBH, has come up with a comprehensive Disciplinary Code.

13.2 Disciplinary Code

- 1) If an employee violates the code of conduct, the supervisor shall immediately obtain the necessary evidence in writing from the employee and available witnesses.
- 2) If the alleged violation is of a minor nature, then the employee shall be served with a verbal warning without documenting the incident on file.
- 3) If an employee violates the discipline code warranting official sanction(s) other than dismissal, the supervisor shall charge the employee and require the employee to respond in writing within 48 hours.
- 4) In any investigation, employees are entitled to know the whole case against them and shall be given adequate opportunity to prepare their defense. No evidence shall be used against employees unless they have been given a copy of the same at least 48 hours in advance.
- 5) If as a result of the investigation, the employee is found at fault, Management, before deciding any sanction against the employee, shall consider the employee's record of performance, any previous violations of the code of conduct and other relevant factors.
- 6) Where a case is established against an employee and the nature of the violation warrants no more than a written warning, the employee shall be given a written warning by the supervisor, setting the precise nature of the violation and the likely consequences of further violations.
- 7) A copy of the letter shall be placed on the employee personal file.
- 8) If an employee commits a second violation within a period of 12 months, she/he shall be given a final warning setting out the precise nature of the violation and cautioning him that if she/he commits a further violation of the code of conduct within 12 months she/he shall be liable to separation from employment. However, if an employee violates the code of conduct, which is considered sufficiently serious to justify summary dismissal, the supervisor shall recommend to the Human Resources Officer that the employee be separated from employment.
- 9) Decisions on employee sanctions including suspension and termination of employment may be taken against an employee charged with a criminal offence within the context of Local Laws.
- 10) In all cases, employees have the right of appeal. The appeal must be made within three (3) working days from the date the sanction became effective. If the employee does not appeal against the sanction within the established time limits the matter shall be deemed settled.

Disciplinary records are maintained in the employee's file for up to a period of 36 months whereupon the employee's conduct is reviewed, and the documentation may be expunged from the file.

13.3 Procedure and sanctions

The following disciplinary actions may be taken if deemed necessary:

- 1) Oral Reprimand.
- 2) Written Reprimand.
- 3) Recovery of an amount in respect of damage / loss of property/Negligence
- 4) Reduction in salary.
- 5) Termination / summary dismissal.

Some examples of offences and the resultant disciplinary actions that will apply are illustrated in the table below:

OFFENSE	DISCIPLINARY ACTION
Unauthorized Leave	Written Reprimand to termination
Habitual tardiness or failure to observe assigned work hour	Written Reprimand to termination
Excessive Absenteeism	Written Reprimand to termination
Reporting to work under the influence of alcohol or any other prohibited drugs	Suspension to termination
Consuming alcohol while on duty	Termination
Possessing or using illegal drugs while on duty	Termination
Insubordination	Written Reprimand to termination
Falsification of records	Termination
Stealing	Termination
Inciting other employees	Termination
Negligence	Written reprimand to termination
Willful violation of written rules, regulations, processes & policies	Suspension to termination
Unauthorized use of misuse of Company's property	Written reprimand to termination
Destruction of Company's property	Written reprimand to termination

Unauthorized possession of firearms while on duty	Termination
Unauthorized distribution of written or printed material of any kind that may be offensive, seditious, political, solicitation of money or protected by intellectual property	Written reprimand to termination
Use of abusive/profane language	Written reprimand to termination
Performing personal duties while on duty	Oral reprimand to termination
Sexual harassment	Written reprimand to termination
Conviction or prison in carceration which adversely reflects on the individual's suitability for continued employment	Termination
Discourteous treatment of visitors or clients	Oral reprimand to termination
Failure to maintain satisfactory or harmonious working relationships with employees or supervisors	Oral reprimand to termination
Improper conduct or conduct unbecoming of an employee of the organization	Written reprimand to termination
Workplace violence or threats	Termination
Lack of capability-inability to perform one's duties	Written reprimand to termination

This above list serves as a guide and is by no means exhaustive. Management will direct on the manner of dealing with an offence not covered in this policy manual.

13.4 The Disciplinary Committee

There shall be a Disciplinary Committee which shall be the custodian of the Institution's Disciplinary Code.

1. Membership

- a) Five Members shall be appointed to the Committee by the Administrator.
- b) Members shall elect one of themselves to serve as Chairperson of the Committee.
- c) The members shall also elect a secretary of the Committee.
- d) Only Members of the Committee shall have a right to attend Committee meetings. Other individuals may be invited to attend all or part of any meeting as and when appropriate.
- e) Appointments to the Committee shall be for a term of two year. The term may be extended by the appointing authority following satisfactory performance.
- f) A member may at any time relinquish his post by officially writing to the Chair. A replacement will thereafter be appointed within 7 days.

2. Responsibilities

- a) To review and give an update on in-house disciplinary process.
- b) To conduct disciplinary hearings and give recommendations to the Hospital Administrator.
- c) To ensure that the findings of any hearing are made public.
- d) To conduct an impartial hearing on any matter brought before the committee.

3. Administrative Duties

- a) The Committee will meet every month to ensure the proper functioning of the Committee. Monthly meetings will be in addition to any meetings that may be called regarding any disciplinary matters in the institution.
- b) The Chairperson of the Committee may on his/her own initiative call for a sitting of the Committee.
- c) Any member of the Committee may by through written request require the Chairperson to convene a sitting of the Committee. The Chairperson may choose to convene a meeting or not provided that he/she gives written reasons as to why he/she has opted not to convene a sitting. If two thirds of members write to the Chairperson requesting a sitting of the Committee, then the Chairperson shall have an obligation to convene a sitting within 2 days of receipt of the last written request making up the two third majority.
- d) The secretary of the Committee shall be responsible for the taking of meetings in all Committee sittings. The secretary will act as Chair in the absence of the Chairperson and the powers of the Chairperson shall apply to the Secretary as if he/she was the such.
- e) All written material and correspondence of the Committee shall be kept by the Secretary for as long as he/she remains holder of the post.
- f) The quorum of the Committee shall be 5 members. A sitting that lacks quorum shall be defective in form and its decisions invalid.
- g) No sitting shall proceed without the attendance of the Chairperson or the Secretary or in their absence, their duly appointed representatives who must be serving members of the Committee.

4. Decision Making

- a) All members of the Committee are under a duty to act in good faith in enforcing the Institutions Disciplinary Policy.
- b) The Committee shall endeavor to arrive at decisions by consensus. Where a decision cannot be reached by consensus, the decision shall be made by a majority of the votes cast by all members present.

5. Confidentiality

6.1 Every member of the Committee shall preserve confidentiality with respect to all information that comes to their knowledge in the course of their duties and shall not communicate any information to any other person.

Surcharging of Staff

A surcharge shall be imposed to any employee who:

- 1) Has negligently or intentionally failed to collect any monies due or belonging to the Company, the collection of which the employee was required to collect.
- 2) Is personally responsible for any improper payment of Company funds.
- 3) Is personally responsible for any loss or deficiency of funds, damage to, or destruction of, any other property of the Company.
- 4) Converts to personal use or uses without authority stores, vehicles and equipment or any other Company property.
- 5) Is personally responsible for any loss, expenditure or liability being incurred by the Company, which but for his act or omission would not have arisen.

NOTE

- Amount of surcharge shall be recovered from the employee's salary in monthly installments, subject to a maximum not exceeding 33.3% of the employee's monthly consolidated salary for each installment.
- A surcharge implemented under these provisions can only be approved by the Human Resource Officer
- Imposition of a surcharge shall not preclude other disciplinary action from being taken against the employee, if such action shall be deemed necessary.

SECTION 14: GRIEVANCE POLICY

14.1 Policy Statement

SBH supports the right of every employee to lodge a grievance with their immediate manager if they believe a decision, behavior or action affecting their employment is unfair. Further, an employee may raise a grievance about any performance improvement action taken against him/her.

SBH aims to resolve problems and grievances promptly and as close to the source as possible. When necessary, the employee will escalate a grievance to the next higher level of authority for more discussion and resolution and may continue escalating it to the level of authority above until it is resolved.

Nevertheless, managers will do their utmost to action grievances objectively, discreetly and promptly.

14.2 Procedure

1. The employee should try to resolve the grievance as close to the source as possible. This can be informal and verbal. At this stage, every possible effort should be made to settle a grievance before the formal grievance process starts. If the matter still can't be resolved, the process continues and becomes formal.
2. To start the formal grievance the complainants must fully describe their grievance in writing, with dates and locations wherever possible and how they have already tried to settle the grievance.
3. The person(s) against whom the grievance/complaint is made should be given the full details of the allegation(s) against them. They should have the opportunity and a reasonable time to respond before the process continues.
4. If the grievance still cannot be resolved, refer the matter to the most senior manager for consideration and a final decision. A grievance taken to this level must be in writing from the employee. A decision taken by the Administrator will be deemed as final

SECTION 15: HUMAN RESOURCE RECORDS

15.1 Standard Records

Personnel files are the property of SBH, and access to information contained therein shall be restricted to the Human Resources Department. Management may request to view their staff's files through the Human Resources Officer.

Employee Personnel files shall include the following documents:

1. A signed acceptance to comply with HR policy manual document
2. Contract of Employment
3. Statement of Changes
4. Job description
5. Resume/CV
6. Copy of employee credentials
7. Statutory records (N HI F, NSSF, PIN etc.)
8. 2 Passport photographs
9. Bank account details
10. Marriage certificate &/ Affidavit
11. Copy of Hepatitis B vaccination card
12. Copy of National Identification card
13. Copy of Driving License (if necessary, for the job)
14. Next of kin details
15. A record of participation in training events
16. Salary history
17. Leave records
18. Disciplinary action records
19. Documents related to employee performance reviews, coaching and mentoring, work projects undertaken, etc.

15.2 Personnel Data Changes

It shall be the responsibility of each employee to promptly notify his supervisor of any changes in personnel data as follows:

- Mailing address
- Telephone Numbers
- Individuals to be contacted in the event of an emergency

An employee's personnel data shall be accurate and current at all times. A record audit will be conducted every quarter to ensure that records are up to date.

SECTION 16: SEXUAL HARRASSMENT POLICY

16.1 Policy Statement

SBH prohibits and strongly condemns Sexual harassment, sexual violence, domestic violence, dating violence, committed by employees, whether on or off the premises, or by any individual on the premises or within its activities. Any form of such harassment or violence shall therefore not be tolerated.

Every SBH employee is entitled to employment that is free of sexual harassment.

SBH management will take all relevant and necessary steps to ensure that no employee is subjected to sexual harassment.

Disciplinary measures will be visited upon any employee who subjects another to sexual harassment.

SBH will not disclose the name of any complainant or the circumstances related to the complaint to any person except where disclosure is necessary for the purpose of investigating the complaint or taking disciplinary measures in relation thereto.

16.2 What is Sexual Harassment

An employee is said to be sexually harassed if the employer of that employee or a representative of that employer or co-worker;

(i) Directly or indirectly requests that employee for sexual intercourse, sexual contact or any other form of sexual activity that contains an implied or express-

(ii) Promise of preferential treatment in employment;

(iii) Threat of detrimental treatment in employment; or

(iv) Threat about the present or future employment status of the employee;

(v) Uses language whether written or spoken of a sexual nature;

(vi) Uses visual material of a sexual nature; or

(vii) Shows physical behavior of a sexual nature which directly or indirectly subjects the employee to behavior that is unwelcome or offensive to that employee and that by its nature has a detrimental effect on that employee's employment, job performance, or job satisfaction.

16.3 When and where is sexual harassment unlawful?

Sexual harassment is unlawful not only during working hours but also in any universally related context including conferences, work functions, sports, work trips and parties. Note: Sexual harassment can be obvious or indirect, physical or verbal, repeated or one-off and can take different forms.

16.4 What are the different-forms of sexual harassment?

17.4.1 Physical Sexual Harassment

This occurs when a victim has been touched in an inappropriate way against his or her own will.

Subtle pressure for sexual activity; Unwelcome/uninvited physical contact such as massaging a person without invitation, hugging, pinching, patting, grabbing in a sexual manner. repeated unwanted sexual invitations, insistent requests for dinner, drinks or dates, persistent letters, phone calls and other invitations.

16.4.1 Verbal Sexual Harassment

This may be oral or written and may include and not limited to: Demeaning references to either the male or female gender; Comments that are sufficiently offensive to cause discomfort and interfere with work or learning. Visual Sexual harassment: This is the use of different forms of visual media to suggest inappropriate sexual advances. Technological sexual harassment is the inappropriate use of photography, email and Internet.

16.4.2 Sexual Bribery

Solicitation of sexual activity or other sex-linked behavior by promise of reward; the proposition may be either overt or subtle.

16.5 Which laws prohibit sexual harassment?

Sexual Harassment is against Kenyan Laws; The Constitution of Kenya (Article 27 & 29); Sexual Offences Act No. 3, 2016; Employment Act of 2007;

16.5.1 What should I do if I am sexually harassed:

- ✓ First Acquaint yourself with the SBH sexual harassment policy
- ✓ You should promptly report any sexual harassment incident to the Human Resource Officer.
- ✓ All members of the SBH community who experience or witness sexual violence, discrimination or harassment from employees, patients, consultants, contractors, visitors and guests are encouraged to report such incidents without fear of retaliation. SBH shall not retaliate and will protect all from retaliation and those found to have retaliated will be subject to disciplinary action up to and including dismissal or expulsion. In certain cases, SBH may pursue an investigation without a formal complaint being lodged.

Delayed reporting may hinder proper investigations. All members of the SBH Community have a Duty of good faith: SBH shall not tolerate false claims. A person who knowingly makes false allegations of sexual harassment, or who knowingly provides false information in a sexual harassment investigation or proceeding, shall be subject to disciplinary action, up to and including termination or expulsion.

SBH undertakes to respond promptly to all reported cases. In case of sexual assault SOUTH B HOSPITAL will assist the victim with consent to notify the relevant authorities.

16.6 What should I do if I am sexually harassed? Where do I file my complaint?

Reports of sexual discrimination or harassment shall be lodged by a signed letter of complaint to the Human Resources Officer. If the matter involves the Human Resources Officer, it should be lodged with The Administrator.

16.7 What will happen to my complaint?

Involved parties will be notified in writing of the complaint and of their rights in the process. Investigation will be done, the charge brought before the accused, the matter will be referred to a disciplinary committee for hearing, with evidence, fairness and in a timely manner, a decision will be made if there is violation of the policy, sanctions ranging from Disciplinary Warning to Suspension will be taken. The accused has a right to appeal within 5 working days of receipt of the letter and receive a response after 10 calendar days from the Administrator whose decision shall be final.

16.8. Checklist for Sexual Harassment

- Looking at a person or parts of their body in a sexually suggestive manner
- Touching or fiddling with a person's clothing including lifting up of skirts or shirts
- Flicking bra straps or putting hands in a person's pocket
- Blocking the victim's path in an aggressive way
- Standing very close to the victim which makes him/her uncomfortable
- Non-consensual kissing or kissing attempts
- Rubbing one's genitals on a person
- Attempt or actual sexual assault (Rape)
- Indecent exposure of one's genitalia.
- Stalking with an intention to sexually harass the victim.
- Obscene gestures
- Groping Subtle pressure for sexual activity
- Unwelcome/uninvited physical contact such as massaging a person without invitation, hugging, patting, fondling and any other unwelcomed physical contact.
- Demeaning references to either the male or female gender
- Comments that are sufficiently offensive to cause discomfort and interfere with work or learning Disparaging remarks about one's gender or physical appearance
- Sex based insults, taunts, teasing or name calling Verbal sexual abuse disguised as humor Making promises or threats in return for sexual favours
- Requests or demands for sex or repeated unwanted requests to go out on dates after prior refusal Intrusive questions or insinuations about an individual's private life
- Suggestive sexually demeaning remarks, comments or jokes
- Smutty jokes or comments about the victim's body or clothing
- Whistling, catcalls
- Comments or questions about the victim's social or sexual life

- Demands for sexual favours and threats of firing if the demands are not met, sudden criticism of one's work, assigned no work/too much work, dangerous work, denial of opportunities, inaccurate job evaluation or marking, pressure to quit
- Obscene communication and unwanted sexual innuendos
- Displaying sexually graphic materials including posters, magazines, cartoons, graffiti or messages left on notice boards, desks or common areas
- Sending or forwarding sexually explicit emails or text messages or emailing offensive "jokes" and pornographic material
- Inappropriate advances on social networking sites
- "Flashing" or making obscene sexual gestures
- Gender Harassment: Generalized sexist statements and behavior that convey insulting or degrading attitudes about both men and women. Examples include insulting remarks, offensive graffiti, obscene jokes or humour about both genders.
- Seductive Behavior: Unwanted, inappropriate and offensive sexual advances. Examples include repeated unwanted sexual invitations, insistent requests for dinner, drinks or dates, persistent letters, phone calls and other invitations.
- Sexual Bribery: Solicitation of sexual activity or other sex-linked behavior by promise of reward; the proposition may be either overt or subtle.
- Sexual Coercion: Coercion of sexual activity or other sex-linked behavior by threat of punishment; examples include negative performance evaluations, withholding of promotions, and threat of termination.
- Sexual violence is a sexual act (including, sexual assault) that is perpetrated against a person's will or without a person's consent, or when a person is incapable of giving consent due to his or her age, family relation to the other person, the ingestion of drugs or alcohol, or the person's intellectual or other disability.
- Sexual assault is any involuntary sexual act in which a person is coerced or physically forced to engage in sexual acts against their will. It includes rape (such as forced vaginal, anal or oral penetration, penetration with a foreign object)

- Up skirting: the taking of nonconsensual photographs under a person's skirt capturing an image of the crotch area, underwear and sometimes genitalia.

NOTE: THIS DOCUMENT IS A PROPERTY OF SOUTH B HOSPITAL AND SHOULD NOT BE SHARED TO ANYONE WHO IS NOT AN EMPLOYEE OF SOUTH B HOSPITAL.

THE END